

See also: Blackstone's *Commentaries* 109 ■ *Hadley v. Baxendale* 148–149 ■ The Workers' Accident Insurance System 164–167 ■ *Salomon v. Salomon & Co. Ltd.* 178–179



An opaque bottle was at the heart of the *Donoghue v. Stevenson* case, with the final ruling based on the fact that the café owner could not be held responsible for what was not visible.

she had paid for the drinks. Under the law as it stood at the time, Mrs. Donoghue was not entitled to compensation for her illness, because she had not entered into a contract with the drink's producer. She sued Stevenson anyway, and in 1931, her case ended up at the House of Lords, which was then the UK's highest court.

"Love thy neighbor"

The following year, Lord Atkin, speaking for the majority of judges who found in favor of Donoghue, said that Stevenson owed a broad duty of care to anyone who drank his product. If a claim for damages was made, it was important to establish whether someone could reasonably foresee that their actions would be likely to injure another person. The Bible's commandment to

"Love thy neighbor," Atkin said, raised the legal issue of "Who is my neighbor?" Atkin went on to say that a person should take into account not just people who are physically close to them, but anyone who was bound to be affected by careless acts. In outlining a person's duty to others—what came to be known as a duty of care—he was setting a standard by which courts could assess whether someone should be held responsible for their careless conduct. This assessment

Who, then, in law
is my neighbor?

Lord Atkin
House of Lords, 1932

It would seem little short of outrageous to make [the defendants] responsible ... for the condition of the contents of every bottle which issues from their works.

Lord Buckmaster
Dissenting judge, 1932

was straightforward in the example of May Donoghue's ginger beer; the manufacturer had made a product designed to go into the wider world, so he should have foreseen that people consuming it would be harmed if it was contaminated.

Donoghue v. Stevenson was important in the field of tort law, which deals with compensation for harm to people's rights to safe products, a clean environment, and protection of their property and wider economic interests. The case clarified the existence of a general duty of care, not just a duty confined to situations such as the relationship between a doctor and a patient, between an employer and an employee, or a contract between a manufacturer and someone buying their product.

As courts later defined concepts such as foreseeability and proximity in more detail, the case came to be considered a landmark in personal injury and consumer law around the world, laying the foundation of the modern law of negligence. ■